

26STCV18904 26STCV18904

County: los-angeles

Division: Civil Law and Motion

Department: 516

Hearing date: 2026-09-22

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Case Number: 26STCV18904 Hearing Date: September 22, 2026 Dept: 516

Judge James I. Montgomery

Department 516

Hearing Date: September 22, 2026

Case Name: Lopez v. De La Rosa, et al.

Case

No.: 26STCV18904

Matter: Motion for Stay of Proceedings

Moving

Party: Plaintiff Dori Lopez

Responding Party: Defendants Rolando De La Rosa and Raymundo De La Rosa

Matter: Demurrer

Moving

Party: Defendants Rolando De

La Rosa and Raymundo De La Rosa

Responding Party: Plaintiff Dori Lopez

Tentative

Ruling: Plaintiff Dori Lopez's

motion for stay of proceedings or consolidation is denied.

Defendants Rolando

De La Rosa and Raymundo De La Rosa's demurrer is sustained in its entirety.

On June 15,

2026, Plaintiff Dori Lopez ("Plaintiff") filed this action against Defendants Rolando

De La Rosa ("Rolando") and Raymundo De La Rosa ("Raymundo") (collectively "Defendants").

The Complaint alleges five causes of action for: (1) quiet title; (2) resulting

trust; (3) constructive trust in violation of Civil Code § 2223; (4) partition

under Code of Civil Procedure section 872.010 et seq.; and (5)

declaratory relief.

On

June 23, 2026, the Court denied Plaintiff's request to deem this present case

related with the unlawful detainer proceeding De La Rosa v. Lopez, (Case

No. 26VEUD01483). Defendant filed the unlawful detainer action on June 15,

2026. The dispute in both actions involve the Subject Property 8433 Brimfield

Avenue, Panorama City, CA 91402 (Subject Property").

Plaintiff

moves to stay the unlawful detainer case between the parties and to consolidate

the action for a temporary restraining order ("TRO"). Defendant opposes.

Defendants demur to

Plaintiff's first, third, fourth, and fifth causes of action as uncertain and

for failing to allege sufficient facts. Plaintiff opposes.

Legal Standard

A.

Motion for Stay of Proceedings

"When

actions involving a common question of law or fact are pending before the

court, it may order a joint hearing or trial of any or all the matters in issue

in the actions; it may order all the actions consolidated and it may make such

orders concerning proceedings therein as may tend to avoid unnecessary costs or

delay." (Code Civ. Proc., § 1048, subd. (a).)

B.

Demurrer

A demurrer is an objection to a pleading, the grounds for which are apparent from either the face of the complaint or a matter of which the court may take judicial notice. (Code Civ. Proc., § 430.30, subd. (a); see also *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) The purpose of a demurrer is to challenge the sufficiency of a pleading by raising questions of law. (Postley v. Harvey (1984) 153 Cal.App.3d 280, 286.) "In the construction of a pleading, for the purpose of determining its effect, its allegations must be liberally construed, with a view to substantial justice between the parties." (Code Civ. Proc., § 452.) The court "treat[s] the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law" (Berkley v. Dowds (2007) 152 Cal.App.4th 518, 525.) In applying these standards, the court liberally construes the complaint to determine whether a cause of action has been stated. (Picton v. Anderson Union High School Dist. (1996) 50 Cal.App.4th 726, 733.)

Analysis

A. Motion for Stay of Proceedings

Plaintiff

moves for the Court to stay the unlawful detainer case, consolidate the actions, or for injunctive relief in the unlawful detainer case.

As an initial matter, the Court previously denied Plaintiff's request to deem the cases related pursuant to California Rules of Court, rule 3.300(a). Plaintiff's request to consolidate the cases is also procedurally improper pursuant to Local Rules of Superior Court, rule 3.3(g).

Thus, the Court denies Plaintiff's request to consolidate the cases. Additionally, Plaintiff seeks a TRO but provides no legal authority to warrant such a request.

Similarly, the Court denies Plaintiff's motion to stay the proceedings in the unlawful

detainer case. ““The constitutionality of these summary procedures is based on their limitation to the single issue of right to possession and incidental damages.” (Martin-Bragg v. Moore (2013) 219 Cal.App.4th 367, 388.) “When an unlawful detainer proceeding and an unlimited action concerning title to the property are simultaneously pending, the trial court in which the unlimited action is pending may stay the unlawful detainer action until the issue of title is resolved in the unlimited action, or it may consolidate the actions.” (Id. at p. 385.)

Plaintiff

contends that the ongoing dispute in both cases is a “complex issue” that requires the Court to stay the action. However, under Martin-Bragg, a stay remains discretionary. Plaintiff has not provided any evidence warranting a stay of the unlawful detainer proceedings. Plaintiff declares that the unlawful detainer case is ripe but provides no legal authority to support her basis. (Lopez Decl., ¶ 14.)

Thus, the

Court denies Plaintiff’s motion to stay the unlawful detainer proceedings.

B. Demurrer

Meet

and Confer

Pursuant to Code of Civil Procedure

section 430.41, “a demurring party is required to meet and confer in person, by telephone, or video conference with the party that filed the pleading. . . .”

(Code Civ. Proc. § 430.41, subd. (a).)

Defendants contend that on July 13,

2026, the parties met and conferred over telephone. (Zadeh Decl., ¶ 3.) Thus, the parties met and conferred.

Uncertainty

Per Code of Civil Procedure section

430.10, subdivision (f), a demurrer must be sustained if a pleading is uncertain. (Code Civ. Proc., § 430.10, subd. (f).) The term uncertain means “ambiguous and unintelligible.” (Ibid.) However, demurrers for

uncertainty will not be sustained unless “the pleading is so incomprehensi[ve] that a defendant could not reasonably respond.” (A.J. Fistes Corp. v. GDL Best Contractors, Inc. (2019) 38 Cal.App.5th 677, 695, quoting Mahan v. Charles W. Chan Ins. Agency, Inc. (2017) 14 Cal.App.5th 841, 848, fn.3.)

Taken as a whole, the Complaint is not incomprehensible. The Complaint alleges sufficient facts for Defendants to respond.

Thus, the Court overrules the demurrer on this basis.

Failure to Allege Sufficient Facts

First Cause of Action—Quiet Title

A quiet title action is based on the “[t]he title of the plaintiff as to which a determination under this chapter is sought and the basis of the title.” (Code Civ. Proc., § 761.020, subd. (b).) “The plaintiff may recover only upon the strength of his or her own title ... and not upon the weakness of the defendant's title. Where the plaintiff relies on a paper title alone he must trace his title (1) to the government; or (2) to grantor in possession at the time of the conveyance to the plaintiff; or (3) to a source common to the chains of title of plaintiff and defendant.” (Thompson v. Ioane (2017) 11 Cal.App.5th 1180, 1195.)

Defendants contend that Plaintiff has alleged insufficient facts to allege a viable claim for relief. “Where the trust property is real estate, the statute of frauds requires that the declaration of trust must be in writing signed by the trustee.” (Estate of Heggstad (1993) 16 Cal.App.4th 943, 947.) Because this is a property dispute, a written agreement is required. Plaintiff alleges that, pursuant to the terms of an “oral family agreement,” Defendant Raymundo agreed to hold legal title to the Subject Property for Plaintiff's benefit. (Compl., ¶ 14.) The Subject Property was allegedly transferred to Defendant Ronaldo to hold for Plaintiff's benefit under the same arrangement. (Compl., ¶¶ 15-16.)

In opposition,

Plaintiff does not meaningfully oppose Defendants' arguments. Plaintiff's sole argument is the pleading standard for demurrers. However, this argument does not address the Complaint's failure to allege the dispute raised.

Thus, the

Court sustains Defendants' demurrer for failure to allege sufficient facts.

Third

Cause of Action—Constructive Trust

“A

constructive trust is an involuntary equitable trust created by operation of law as a remedy to compel the transfer of property from the person wrongfully holding it to the rightful owner.” (Communist Party v. 522 Valencia, Inc. (1995) 35 Cal.App.4th 980, 990.) “The general principles for imposition of a constructive trust are set forth in Civil Code sections 2223 and 2224. ([Citation.]) Civil Code section 2223 states, ‘One who wrongfully detains a thing is an involuntary trustee thereof, for the benefit of the owner.’ Civil Code section 2224 provides, ‘One who gains a thing by fraud, accident, mistake, undue influence, the violation of a trust, or other wrongful act, is, unless he or she has some other and better right thereto, an involuntary trustee of the thing gained, for the benefit of the person who would otherwise have had it.’” (Higgins v. Higgins (2017) 11 Cal.App.5th 648, 659 (citation omitted).)

Defendants

contend that Plaintiff fails to allege any wrongful conduct to assert her claim against them. The Court agrees. Plaintiff alleges that the wrongful conduct was the breach of the family agreement and “other wrongful conduct.” (Compl., ¶ 62.) Plaintiff's allegation is conclusory.

In opposition,

Plaintiff argues that her claim for constructive trust is based on the specific allegations in her second cause of action for a resulting trust. However, the Court is not persuaded. First, Plaintiff does not cite legal authority to support her claim. Second, the Complaint alleges that Plaintiff made all the payments and that Rolando holds legal title to the Subject Property. (Compl., ¶¶ 51-57.) Taking all the allegations as true, the Court finds that Plaintiff has not alleged sufficient facts for a viable cause of action.

Thus, the

Court sustains Defendants' demurrer for failure to allege sufficient facts.

Fourth

Cause of Action—Partition

A partition

action may be commenced when “[a]n owner of an estate of inheritance, an estate for life, or an estate for years in real property where such property or estate therein is owned by several persons concurrently or in successive estates.”

(Code Civ. Proc., § 872.210, subd. (a)(2).) “Section 872.210, subdivision (a)(2) provides the standing requirements to bring a claim to partition real property. Consistent with these general standing principles and with partition's purpose of splitting title amongst current owners ([Citation.]), the statute provides that a partition action “may be commenced and maintained by” “[a]n owner of an estate of inheritance ... in real property where such property or estate therein is owned by several persons concurrently or in successive estates.”” (Amundson v. Catello (2025) 111 Cal.App.5th 817, 824.)

Defendant

argues that Plaintiff contradicts her claims because instead of concurrent ownership, she alleges that she alone paid for the Subject Property. Moreover, Plaintiff's attempt to plead an alternative theory does not cure the ongoing defect that she contradicts her pleadings. The Court finds that Plaintiff's allegations are conclusory and do not support her causes of action.

In

opposition, Plaintiff provides no legal authority to support her basis.

Thus, the

Court sustains Defendants' demurrer for failure to allege sufficient facts.

Fifth

Cause of Action—Declaratory Relief

“There is

unanimity of authority to the effect that the declaratory procedure operates prospectively, and not merely for the redress of past wrongs. It serves to set

controversies at rest before they lead to repudiation of obligations, invasion of rights or commission of wrongs; in short, the remedy is to be used in the interests of preventive justice, to declare rights rather than execute them." (Travers v. Louden (1967) 254 Cal.App.2d 926, 931.)

Defendant

argues that Plaintiff seeks for the Court to make a final determination that she is the rightful owner based on past conduct. Defendant contends that Plaintiff's claim for declaratory relief duplicates its first, second, and third causes of action.

In opposition,

Plaintiff does not make any legal argument to meaningfully oppose Defendants' arguments.

Thus, the

Court sustains Defendants' demurrer for failure to allege sufficient facts.

Therefore,

the Court sustains Defendants' demurrer in its entirety.

Leave

to Amend

Leave to amend must be allowed

where there is a reasonable possibility of successful amendment. (See Goodman v. Kennedy (1976) 18 Cal.3d 335, 349 [court shall not "sustain a demurrer without leave to amend if there is any reasonable possibility that the defect can be cured by amendment"]; Kong v. City of Hawaiian Gardens Redevelopment Agency (2002) 108 Cal.App.4th 1028, 1037 ["A demurrer should not be sustained without leave to amend if the complaint, liberally construed, can state a cause of action under any theory or if there is a reasonable possibility the defect can be cured by amendment."]; Vaccaro v. Kaiman (1998) 63 Cal.App.4th 761, 768 ["When the defect which justifies striking a complaint is capable of cure, the court should allow leave to amend."].) The burden is on the complainant to show the Court that the pleading can be successfully amended. (Blank v. Kirwan (1985) 39 Cal.3d 311, 318.)

Plaintiff will have the opportunity

to file an amended pleading in accordance with the Court's ruling.

Conclusion

Plaintiff Dori Lopez's motion to stay of proceedings is denied in its entirety.

Defendants Rolando De La Rosa and Raymundo De La Rosa's demurrer is sustained in

its entirety with leave to amend. Amended pleading is due by October 12, 2026.